

Tentative Rulings for July 31, 2026

Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

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You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL NORMA JEAN BERQUIST'S RESPONSES TO FORM AND SPECIAL INTERROGATORIES SET ONE BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: Code of Civil Procedure sections 2030.290(b) and 2031.300(b) allows the propounding party to file a motion to compel responses to interrogatories and requests for production of documents if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a), 2031.300(a).) Plaintiff served responses after the motions were filed. (Young Decl., Exh. 1.) Plaintiff argues this renders the motions moot. However, the responses attached to the opposition are not verified. (C.C.P., §§ 2030.250, 2031.250.) An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [applying to requests for admissions].)

As for sanctions, sections 2030.290(c) and 2031.300(c) provide that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct., rule 3.1348(a).)

Motion continued to 8.19.26 for Plaintiff to submit verified responses. Verified responses to be submitted by 8.07.26. No further briefing shall be permitted.

Case Management Conference and OSC are continued to 8.19.26.

Request for sanctions to be addressed on the next hearing date.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL NORMA JEANNE BERGQUIST'S RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS SET ONE BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: Code of Civil Procedure sections 2030.290(b) and 2031.300(b) allows the propounding party to file a motion to compel responses to interrogatories and requests for production of documents if a response has not been received. If responses are untimely, responding party waives objections. (*Id.* at §§ 2030.290(a), 2031.300(a).) Plaintiff served responses after the motions were filed. (Young Decl., Exh. 1.) Plaintiff argues this renders the motions moot. However, the responses attached to the opposition are not verified. (C.C.P., §§ 2030.250, 2031.250.) An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [applying to requests for admissions].)

As for sanctions, sections 2030.290(c) and 2031.300(c) provide that “the court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response ... unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” The court may award sanctions even though the requested discovery was provided after the motion was filed. (Cal. R. Ct., rule 3.1348(a).)

Motion continued to 8.19.26 for Plaintiff to submit verified responses. Verified responses to be submitted by 8.07.26. No further briefing shall be permitted.

Case Management Conference and OSC are continued to 8.19.26.

Request for sanctions to be addressed on the next hearing date.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503366	BERGQUIST VS CITY OF DESERT HOT SPRINGS	MOTION TO COMPEL REQUEST FOR ADMISSIONS, SET ONE BY CHRISTIANSEN AMUSEMENTS, INC.

Tentative Ruling: Where a party fails to respond to RFAs, the propounding party may move for an order that RFAs be deemed admitted. (Code Civ. Proc., § 2033.280(b).) “[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.” (*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979.) However, a responding party’s service, prior to the hearing on the “deemed admitted” motion, of substantially compliant responses, will defeat a propounding party’s attempt under § 2033.280(b) to have RFAs deemed admitted. (*Tobin v. Oris* (1992) 3 Cal.App.4th 814, 827, *disapproved on other grounds*, *Wilcox, supra*, 21 Cal.4th 973, 983, fn. 12.)

Here, Plaintiff served her RFA responses on 7/6/26. Counsel also attached a copy of the responses to his declaration. However, the problem is that the responses attached to the opposition are not verified. (C.C.P., §§ 2033.240(a).) An unverified response is ineffective as it is the equivalent of providing no response at all. (*Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636 [applying to requests for admissions].)

As for sanctions, Code of Civil Procedure § 2033.280(c) provides that “[i]t is *mandatory* that the court impose a monetary sanction ... on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated [the] motion.” (Emphasis supplied.)

Motion continued to 8.19.26 for Plaintiff to submit verified responses. Verified responses to be submitted by 8.07.26. No further briefing shall be permitted.

Case Management conference and OSC are continued to 8.19.26.

Request for sanctions to be addressed on the next hearing date.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2509083	POLETIS VS PATTERSON	MOTION TO STRIKE COMPLAINT ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF ANDREW POLETIS

Tentative Ruling: Defendants move to strike Plaintiffs' request for punitive damages. The court may, upon a motion made pursuant to CCP § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) "[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged." (*Washington Int'l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

In tort cases, a plaintiff may seek punitive damages for "oppression, fraud or malice" by the defendant. (Civ. Code § 3294(a).) As far as punitive damages, the complaint must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Punitive damages may not be pleaded generally. (*Id.*) It is not sufficient to allege merely that defendant "acted with oppression, fraud or malice." Rather, plaintiff must allege specific facts showing that defendant's conduct was oppressive, fraudulent or malicious (e.g., that defendant acted with the intent to inflict great bodily harm on plaintiff or to destroy plaintiff's property or reputation). (*Smith v. Sup.Ct. (Bucher)* (1992) 10 Cal.App.4th 1033, 1041-1042; *Anschutz Entertainment Group, Inc. v. Snepp* (2009) 171 Cal.App.4th 598, 643.)

"Malice" means conduct intended by the defendant to cause injury to the plaintiff or despicable conduct that is carried on by the defendant with a willful and conscious disregard for the rights or safety of others. (Civ. Code § 3294(c)(1).)

The complaint alleges the following regarding Patterson's conduct: "...Patterson stood up, quickly walked to the restaurant patio dining area rail and hopped over it onto the sidewalk, rapidly approached Plaintiffs up to the raised ledge of the planter box where [Andrew] was standing, and put his arms around Andrew's shoulders. Patterson then pulled [Andrew] down onto the side walk, where Andrew tried to stand, and then Patterson threw Andrew down flat on his right side on the sidewalk. Patterson then struck [Andrew's] face with a closed fist, breaking his nose. [Andrew] tried to prevent further attack, and tried to stand up, but was thrown down again by [Patterson]." (Complaint, ¶ 1, p. 2:13-20.)

As alleged, Patterson's actions show intent to cause injury with a willful and conscious disregard for the safety of Plaintiffs. The allegations are similar to those seen in *Thomas v. Doorley* (1959) 175 Cal.App.2d 545, where the court upheld a jury award of punitive damages in favor of the plaintiff who stated he was the victim of an "unprovoked, unwarranted and malicious assault." (*Thomas, supra*, 175 Cal.App.2d at 548.) Despite conflicting testimony regarding self-defense, the court held that, "It is beyond controversy that the defendants were guilty of oppression and malice and that the court was justified in awarding punitive damages as provided by section 3294 of the Civil Code." (*Id.* at 494.)

Even when a complaint does not have a specific request for punitive damages, it has been found that allegations that a defendant assaulted and beat a plaintiff, and the defendant struck the plaintiff in and about the face fracturing plaintiff's jaw and causing injury to the plaintiff's left eye, and numerous contusions and abrasions about the plaintiff's face and head, inferentially pleaded malice so as to warrant an instruction on exemplary damage. (See generally, *Voy v. Shelley* (1960) 177 Cal.App.2d 132.)

Here, the complaint sufficiently describes Patterson's assault and battery on Andrew such that a request for punitive damages survives the pleadings challenge. (Complaint, ¶ 1, p. 2:13-20.)

Motion to Strike Plaintiffs' Claim for Punitive Damages DENIED.

Case Management Conference confirmed for 7.31.26

5.

CASE #	CASE NAME	HEARING NAME
CVPS2602614	GONZALEZ VS LALEZARY LAW FIRM, LLP	MOTION TO VACATE; TO DISQUALIFY; VOID; AND FOR TERMINATING SANCTIONS by JENNIE LYNN GONZALEZ

Tentative Ruling: No tentative ruling. Case was transferred to Los Angeles County Superior Court for all purposes.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2602951	NGHIEM VS GENESIS MOTOR AMERICA, LLC	MOTION TO COMPEL ARBITRATION BY GENESIS MOTOR AMERICA, LLC

Tentative Ruling: CCP §1281.2, governing orders to arbitrate controversies, provides:

On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that:

(a) The right to compel arbitration has been waived by the petitioner;

or

(b) Grounds exist for rescission of the agreement. (CCP §1281.2(a)-(b).)

A trial court is required to grant a motion to compel arbitration “if it determines that an agreement to arbitrate the controversy exists.” (CCP § 1281.2.) However, there is “no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate.” (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505.) Thus, in ruling on a motion to compel arbitration, the court must first determine whether the parties actually agreed to arbitrate the dispute. (*Mendez v. Mid-Wilshire Health Care Center* (2013) 220 Cal.App.4th 534, 541.)

Not cited by either party but is instructive is *Mitri v. Arnel Management Co.* (2007) 157 Cal.App.4th 1164 (“Mitri”). There, the arbitration agreement in the employee handbook required employees, as a condition of employment, to sign an arbitration agreement and that each will be provided a copy of their signed arbitration agreement. However, no signed arbitration agreement was produced and the Court of Appeal held the employer failed to establish the existence of an agreement to arbitrate, rejecting the employer’s argument that the handbook’s reference to a separate arbitration agreement constituted an arbitration agreement between employer and employee, finding the language of the handbook itself suggested the handbook did not create an agreement between the party. (Id. at 1170-1171.)

Here, Defendant GMA failed to establish mutual assent. Like Mitri, GMA here has not produced evidence of any signed arbitration agreement to evidence mutual assent. “One of the essential elements of an enforceable contract is mutual consent.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 811.) For consent to be mutual, the parties must all agree on the same thing in the same sense. (Ibid.; Civ. Code, §§ 1580, 1636.) There is no evidence Plaintiffs were presented the relevant pages of the Handbook where the arbitration provision is specifically located. There is no evidence that Plaintiffs signed an acknowledgment of receipt of the Handbook. In fact, there is no evidence the Handbook was even presented to Plaintiffs prior to, or after, purchase. Instead, defense counsel simply attaches the Warranty Handbook as an exhibit to his declaration. (Ameripour Decl., Exh. 2.) There is no declaration by a GMA representative stating that the Handbook was, in fact, provided to Plaintiffs or that the Handbook is provided to all Hyundai purchasers, or that the Warranty Handbook is even applicable to Plaintiffs’ vehicle.

Equitable Estoppel:

Defendant GMA’s argument under the doctrine of equitable estoppel also fails. GMA argues that Plaintiff is equitably estopped from disclaiming the arbitration clause because “a litigant may not assert claims based on a contract while simultaneously arguing that an arbitration clause in that contract is ineffective,” citing to *Stiner v. Brookedale Senior Living, Inc.* (9th Cir. 2020) 810 F. App’x 531, 534. However, *Stiner* is inapplicable because it involved an arbitration clause contained in a mutually agreed upon, fully executed assisted living facility residency agreement. In fact, all of the cases cited by GMA involve signed agreements. The difference here is that GMA failed to show the Handbook is an enforceable contract.

Warranties vs. Contracts:

It should be noted that warranties are different from contracts. Warranties, unlike contracts, do not impose binding obligations on the buyer. (See *Weinstat v. Dentsply Int'l, Inc.* (2010) 180 Cal.App.4th 1213, 1228-1229.) "A warranty relates to the title, character, quality, identity, or condition of the goods. The purpose of the law of warranty is to determine what it is that the seller has in essence agreed to sell." (*Keith v. Buchanan* (1985) 173 Cal.App.3d 13, 20.) Based on those warranties, the seller is bound to deliver and the buyer to accept goods that match the warranties made. (Ibid.) Written warranties are merely a written statement of promises made to the consumer prior to a purchase, which constitute a declaration of the facts presented or promises made to the consumer in connection with the sale of a good. (Civ. Code, §§ 1791.2, 1790.3; 15 U.S.C. § 2301(6).) While the seller may be held to the promises/warranties it made to a consumer prior to the sale of a vehicle, the written warranties do not constitute a contract between the manufacturer and the buyer. Rather, it is the retail installment sales contract that evidences the transaction.

Defendant's Request for Judicial Notice GRANTED.

Plaintiff's Evidentiary Objection #1 SUSTAINED.

Motion to Compel Binding Arbitration DENIED.

Case Management Conference confirmed for 10.21.26.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2604533	KALMANEK VS CENTURY 21 REAL ESTATE LLC, A DELAWARE LIMITED LIABILITY	HEARING ON PETITION TO PERPETUATE TESTIMONY AND COMPLE PRE-FILING DISCOVERY

Tentative Ruling: No tentative ruling. Case was dismissed on 7.17.26.